

25CHCV01812 25CHCV01812

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV01812 Hearing Date: July 8, 2026 Dept: F49

Dept. F49

Date: 7/8/26

Case Name: A.R., et al. vs. Charisma Academy I Inc. dba
Granada Hills Montessori, et al.

Case No. 25CHCV01812

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 8, 2026

MOTION TO SEAL

DECLARATION

Los Angeles Superior

Court Case No. 25CHCV01812

Motion filed: 2/6/26

MOVING PARTY: Plaintiffs A.R., et al.

RESPONDING PARTY: None

NOTICE: Incomplete

RELIEF REQUESTED: An order from this Court granting Plaintiffs leave to redact the full names of their guardians ad litem in declarations filed in support of Plaintiffs' motion for trial preference.

TENTATIVE RULING: The Motion is CONTINUED.

I.

BACKGROUND

This action arises from alleged personal injuries sustained by a group of minor Plaintiffs while attending Defendants' pre-schools.

On May 23, 2025, Plaintiffs A.R., by and through Guardian Ad Litem ("GAL") A.U.; A.E., by and through GAL J.E.; B.L., by and through GAL B.L.; D.V., by and through GAL A.V.; H.N. and M.N., by and through GAL A.K.; L.G., by and through L.G.; M.O., by and through GAL M.J.O.; N.M., by and through GAL V.M.; S.S., by and through GAL R.S.; and Z.W., by and through GAL J.W. (each, a "Plaintiff," and collectively, "Plaintiffs") initiated this action.

On January 12, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants Charisma Academy I Inc. dba Granada Hills Montessori Preschool ("GHMP"); Charisma Academy Inc. ("Charisma Corp."); Charisma Academy II Inc. ("Charisma II"); Charisma Academy III Inc. ("Charisma III"); Charisma Academy IV Inc. ("Charisma IV"); Charisma Academy V Inc. ("Charisma V"); Charisma Academy VI Inc. ("Charisma VI") (collectively, "Charisma Defendants"); Noresha Jayasundara ("Jayasundara"); Noesh Hordagoda ("Noesh"); Gladys Villalobos ("Villalobos"); Roshini Hordagoda ("Roshini"), and Does 1 through 100. The FAC alleges the following six causes of action: (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence and negligence per se for breach of mandatory duty—failure to report, (5) negligent hiring, supervision and retention of employee, and (6) premises liability.

On

February 11, 2026, Charisma Defendants, Noesh, Villalobos, and Roshini filed

their joint Answer to the FAC. On February 13, 2026, Jayasundara filed an Answer to the FAC.

On February 6, 2026, Plaintiffs filed the instant motion to seal (the “Motion”).

No opposition papers have been filed.

II. ANALYSIS

A. Legal Standard

“A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record.” (California Rules of Court, rule 2.551, subd. (b)(1).) The motion must be served on all parties that have appeared in the case. (Id., rule 2.551, subd. (b)(2).)

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and [n]o less restrictive means exist to achieve the overriding interest.” (California Rules of Court, rule 2.550, subd. (d).)

B. Procedural Considerations

As a preliminary consideration, the Court notes that the proof of service attached to the Motion indicates that the papers served were Plaintiffs’ Notice of Motion and Motion for Trial Preference and declarations supporting Plaintiff’s Motion for Trial Preference. (Mot., Proof of Service.) This is insufficient to establish that the instant motion to seal was served on Defendants. The requirements of California Rules of Court, rule 2.551, subdivision (b)(2) have therefore not been satisfied and service is incomplete.

Based on the
foregoing, the Court continues the Motion to allow Plaintiffs the opportunity
to comply with service requirements.

CONCLUSION

The Court CONTINUES Plaintiffs'
Motion to Seal.

Moving party to give notice.